

CITATION: R. v. Shorthouse, 2025 ONSC 6961
COURT FILE NO. CR-24-0128-00AP
DATE: 2025-12-11

**ONTARIO
SUPERIOR COURT OF JUSTICE**

His Majesty the King

- and -

Appellant

A. Sadler, for the Crown

HEARD: via Zoom May 16, 2025
at Kenora, Ontario

[2] The appellant requests that the Court allow the appeal, exclude the medical records under s. 24(2) of the *Charter*, vacate the conviction, and substitute an acquittal.

[3] For the reasons that follow, the appeal is dismissed.

SUMMARY OF THE EVIDENCE AT TRIAL

[4] The trial proceeded on December 11, 2023, and on January 25, 2024, as a blended *voir dire* and trial, on the count noted above and on a second count of operating a conveyance while his ability to do so was impaired, contrary to s. 320.1(4)(1)(a) of the *Code*.

[5] At trial, the Crown called three witnesses. Provincial Constable B. Moar (“Cst. Moar”), Provincial Constable B. Bye (“Cst. Bye”) and Zachery Hynna (“Mr. Hynna”).

The Motor Vehicle Accident

[6] On May 26, 2022, at 7:56 pm, police received a call for service generated by an electronic monitoring company (the “SOS call”). The SOS call indicated that there was an accident along Highway 527 between Thunder Bay and Armstrong, Ontario. Contact information included that the appellant was the registered owner of the device. Brandi Shorthouse, the appellant’s spouse, was a registered “emergency contact” for this device with the monitoring company. Ms. Shorthouse was contacted by Cst. Moar who was told that the appellant was travelling from Thunder Bay to Armstrong hauling a trailer. The appellant’s two employees, Mr. Hynna and John Holloway (“Mr. Holloway”), were camping in the vicinity and also received the SOS call.

[7] Mr. Hynna and Mr. Holloway drove to the scene of the accident. Mr. Hynna saw a truck and camper trailer in the ditch on the right side of the road and observed the appellant and his dog. The EMS arrived on the scene shortly thereafter.

[8] When Cst. Moar arrived at the scene of the MVA at approximately 8:50 p.m., he observed an overturned pick-up truck and trailer off the highway in the ditch and the appellant standing near the truck. Cst. Moar's investigation led him to believe that the appellant was the driver of this vehicle at the time of the accident.

[9] The appellant walked up from the ditch to the ambulance. The paramedics had concerns about the appellant having suffered a possible head injury due to the nature of the accident. Cst. Moar followed the two paramedics and the appellant into the ambulance. Shortly thereafter, the appellant refused medical attention and exited the ambulance.

[10] Cst. Moar testified that following the conclusion of the paramedics' examination of the appellant, he formed grounds to demand that the appellant provide a sample of his breath into an Approved Screening Device ("ASD") and he made the requisite demand of the appellant. Prior to making the ASD demand, Cst. Moar had not asked the appellant if he had recently consumed alcohol.

[11] The appellant's second breath sample registered a fail. Cst. Moar arrested the appellant for impaired driving and informed him of his right to counsel. As a result of the appellant's medical condition appearing to suddenly deteriorate at that point, he agreed to get into the ambulance to be taken to hospital in Thunder Bay.

[12] Cst. Moar followed the ambulance to the hospital. It was arranged that Cst. Bye would meet him at the hospital to administer a breath test on the appellant. However, Cst. Moar and Cst. Bye learned that the appellant had become “unresponsive” in the ambulance, enroute to the hospital.

The Hospital

[13] Cst. Moar and Cst. Bye waited at the hospital in the event the appellant became responsive. At one point, Cst. Bye was told by a person in hospital scrubs, whom he assumed was medical staff, and in relation to the appellant, that a trauma test which includes testing for alcohol would generally be done on a patient in the circumstances of the appellant, or that staff were doing trauma tests which generally includes testing for blood-alcohol levels. Cst. Bye later observed blood being drawn from the appellant.

[14] Cst. Moar and Cst. Bye determined that it was not possible to obtain a breath sample from the appellant or to make a demand for a blood sample because the appellant remained medically “unresponsive”. Cst. Bye decided that it would be necessary to obtain the appellant’s medical records from the hospital to determine the appellant’s blood/alcohol level.

The Production Order

[15] In November 2022, Cst. Moar applied for and obtained a production order to obtain the appellant’s medical records from the hospital. At paragraphs 43 and 44 of the Information to Obtain (the “ITO”), Cst. Moar addressed why he believed the appellant’s medical records would contain analysis of his blood/alcohol level:

43 I know from the attending Breath Technician, Cst. Bye, that when someone is taken to hospital with serious injuries, a medical practitioner draws blood and the hospital completes a toxicology screen to see what types of drugs or alcohol is in the person's body so that proper medications can be delivered and not cause an overdose.

44 I observed as Cst. Bye confirmed with one of the medical staff that blood would be drawn for analysis.

[16] Cst. Moar did not provide any evidence in the ITO confirming that a blood sample was in fact drawn from the appellant or, if drawn, whether it was tested for alcohol.

[17] The production order issued and the police obtained the appellant's medical records. The records indicated that the appellant's blood alcohol concentration from a sample collected at 12:18 a.m. was 171 mg of alcohol in 100 mL of blood. As a result, the appellant was charged as set out above.

The Trial

[18] At trial, defence counsel argued that the appellant's *Charter* rights under ss. 7, 8, 9 and 10(a) and (b) had been breached and that all evidence should be excluded pursuant to s. 24(2) of the *Charter*.

[19] The trial judge dismissed all *Charter* challenges and found the appellant guilty on both counts. The count charging impaired operation contrary to s. 320.14(1)(a) of the *Code* was stayed and the appellant was convicted of operating a conveyance with a blood alcohol level in excess of the legal limit.

THE GROUNDS FOR APPEAL

[20] The appellant advances three grounds of appeal:

1. The trial judge misapprehended Cst. Moar's evidence when finding that two witnesses at the scene of the MVA identified the appellant as the driver of the vehicle involved in the accident;
2. The trial judge erred in law when finding that Cst. Moar had the statutorily required reasonable suspicion when making the ASD demand; and
3. The trial judge misapprehended Cst. Bye's evidence in finding that the production order could have issued, mistakenly finding that hospital staff told Cst. Bye that the blood drawn from the appellant would be tested for alcohol.

THE STANDARD OF REVIEW

[21] The standard of review on a summary conviction appeal is whether, based upon the evidence, the decision made by the trial judge is a finding that could have been reasonably reached. As a result, a court sitting on an appeal should only allow an appeal of the decision if: (a) It cannot be supported by the evidence; or (b) It is clearly wrong in law; or (c) It is clearly unreasonable; or (d) There was a miscarriage of justice: see *R. v. Dennis*, 2011 ONSC 4110, at para. 19.

[22] In *R. v. Sheahan*, 2017 ONCA 159, at para. 12, the Court of Appeal for Ontario, framed the standard of review to be applied by a Summary Conviction Appeal Court as follows: "Absent an error of law or a miscarriage of justice, the test to be applied...is whether the findings of the trial judge are unreasonable or cannot be supported by the evidence. A Summary Conviction Appeal Court judge is not entitled to substitute his or her own view of the evidence for that of the trial judge. A trial judge's factual findings are entitled to deference, absent palpable and overriding error."

DISCUSSION

1. **Did the trial judge misapprehend Cst. Moar’s evidence in finding that two witnesses at the scene identified the appellant as the driver of the motor vehicle involved in the accident?**

A. Legal Principles of Misapprehension of Evidence

[23] In *R. v. Stennett*, 2021 ONCA 258, at para. 50, Watt J.A. explained that the phrase “misapprehension of evidence” encompasses at least three errors: the failure to consider evidence relevant to an issue, a mistake about the substance of an item or items of evidence, and a failure to give proper effect to evidence. Where an appellant advances misapprehension of evidence as a ground of appeal, the reviewing court first considers the reasonableness of the verdict rendered by the trial judge. If the verdict is not unreasonable, then the reviewing court must decide whether the misapprehension of the evidence caused a miscarriage of justice. If the appellant fails on this ground as well, the court must inquire whether the misapprehension amounted to an error of law, and if so, whether that error occasioned the appellant a substantial wrong or miscarriage of justice: see *Stennett*, at para. 51.

[24] Whether a misapprehension of evidence renders a trial unfair and results in a miscarriage of justice requires an examination of the nature and extent of the misapprehension and its significance to the verdict rendered at trial. Where the mistake relates to a material part of the evidence and the error plays an essential part in the reasoning process leading to the conviction, the conviction is not grounded exclusively on the evidence and constitutes a miscarriage of justice. This is a stringent standard: see *Stennett*, at para. 52.

B. The Position of the Appellant

[25] The appellant points to the following statement by the trial judge as a misapprehension of Cst. Moar's evidence:

[Cst. Moar] testified that two males at the scene identified themselves as [the appellant's] employees and identified [the appellant] as the driver of the truck.

[26] The appellant submits that Cst. Moar did not give this evidence. The appellant contends that Cst. Moar testified that the two employees gave him only two items of information: (1) they were the appellant's employees; and (2) they knew who the appellant was and identified him. The appellant submits that when asked if he was told anything else by these employees, Cst. Moar testified, "not that I recall".

[27] The appellant suggests that there was no evidence upon which the trial judge could have found that the witnesses told Cst. Moar that the appellant was the driver of the truck involved in the MVA. The appellant submits that "the only evidence available" in relation to this essential element of the offence was that the appellant was the only person near the truck when Cst. Moar arrived on the scene, approximately one hour after the call for service. The appellant contends that this evidence is insufficient to prove beyond a reasonable doubt that the appellant was driving the truck at the time of the accident.

[28] The appellant concedes that an inference could be drawn that the appellant was the driver. However, the appellant submits that it is not the only reasonable inference to be drawn from all the evidence. The appellant suggests that the availability of other reasonable inferences means that the trial judge could not have inferred that the appellant was the driver in order to find that this essential element of the offence had been proven beyond a reasonable doubt.

[29] The appellant submits that a review of the evidence leads to the conclusion that there was insufficient evidence to prove beyond a reasonable doubt that the appellant was the driver of the truck. This court should therefore substitute an acquittal, according to the appellant.

C. The Position of the Respondent

[30] The respondent submits that the trial judge's impugned comments, in relation to the two employees of the appellant identifying him as the driver, are found in the introductory section of the trial judge's Reasons when she is summarizing the evidence in very general terms. The respondent also submits that defence counsel at trial made no submissions suggesting that the essential elements of the offence had not been made out. The respondent contends that a review of defence submissions at trial clearly indicates that the appellant was relying exclusively on *Charter* arguments in an attempt to establish a defence at trial.

[31] The respondent submits that a review of the entire transcript of the evidence confirms that the evidence identifying the appellant as the driver was not limited to Cst. Moar's recounting of hearsay from the two employees. The respondent points to the evidence of Mr. Hynna himself who, together with his co-worker, received the SOS on their emergency GPS unit from the appellant's unit, travelled to the accident site and observed the appellant with his truck and trailer.

[32] The respondent submits that there was sufficient evidence pursuant to which the trial judge could infer that the accused was the driver of the truck involved in the MVA, and that this ground of appeal should be dismissed, or a new trial ordered if the appeal is granted on this ground.

D. Analysis

[33] I would not give effect to this ground of appeal. In my view, the trial judge did not make a mistake about the substance of all evidence available on this element of the offence. I accept the submission of the respondent that my analysis of this ground of appeal must consider that the issue of the appellant being the driver of the truck was not argued at trial. It follows that the trial judge did not address this issue in a comprehensive manner in her reasons.

[34] However, I find that on a review of all the evidence on this issue, the only reasonable inference to be drawn is that the appellant was the driver. That evidence is:

- An SOS call was received by police regarding an MVA.
- The appellant was the registered owner of the device that generated the SOS call.
- The appellant's spouse was a registered contact for the device.
- Cst. Moar learned from the appellant's spouse that the appellant was driving from Thunder Bay to Armstrong and driving his truck and trailer.
- Mr. Hynna and his co-worker also received the SOS call from the appellant's device, drove to the accident site and observed the appellant's truck and trailer in the ditch and the appellant near his truck.
- Cst. Moar observed the appellant standing near his truck when he arrived at the scene.

[35] I find that the trial judge did not misapprehend the evidence on this issue. Her failure to exhaustively review and address all evidence on this issue was clearly because it was not argued at trial. Based on all the evidence available to the trial judge, it is reasonable to infer that the accused was the driver. In my view, there is no other *reasonable* inference to be drawn from all the evidence.

[36] This ground of appeal is dismissed.

2. Did the trial judge err in finding that Cst. Moar had reasonable suspicion prior to making the ASD demand?

A. Legal Principles of “Reasonable Suspicion”

[37] Section 320.27(1)(b) of the *Code* states:

If a peace officer has reasonable grounds to suspect that a person has alcohol...in their body and that the person has, within the preceding three hours, operated a conveyance, the peace officer may, by demand, require the person;

(b) to immediately provide the samples of breath that, in the peace officer’s opinion, are necessary to enable a proper analysis to be made by means of an approved screening device and to accompany the officer for that purpose.

[38] In *R. v. MacKenzie*, 2013 SCC 50, [2013] 3 S.C.R. 250, the Supreme Court of Canada considered the meaning of the term “reasonable suspicion” in the context of police sniffer-dogs used for the detection of controlled substances. Reasonable suspicion must be assessed against the totality of the circumstances; reasonable suspicion means “reasonable grounds to suspect” as distinguished from “reasonable grounds to believe”; while both concepts must be grounded in objective facts that stand up to independent scrutiny, reasonable suspicion is a lower standard, as it engages the reasonable possibility, rather than the probability of crime: see *MacKenzie*, at paras. 71 and 74. The court in *MacKenzie* also noted, at para. 71, that characteristics which apply broadly to innocent people and “no-win” behaviour – he looked at me, he did not look at me – cannot on their own, support a finding of reasonable suspicion, although they may take on some value when they form part of a constellation of facts.

[39] In *R. v. Schouten*, 2016 ONCA 872, at para. 26, the Court of Appeal for Ontario noted that it is not necessary that a person show signs of impairment to find a basis for making a roadside breath demand – “all that is required is that the police officer making the demand has reasonable

grounds to suspect that a person has alcohol in their body”. In *R. v. Wilson*, 2020 ONSC 1956, Heeney J. found, at para. 21, that it is reasonable to suspect that the driver may be impaired by alcohol in a single-vehicle accident where a vehicle runs into an immovable object,

[40] In *R. v. Bush*, 2010 ONCA 554, the Court considered whether an officer had reasonable and probable grounds to make a breathalyzer demand. The court noted, at paras. 54 and 57, that the determination of whether reasonable and probable grounds exist is a fact-based exercise dependent upon all the circumstances of the case. The totality of the circumstances must be considered, and that consideration includes the existence of an accident. The possibility that the accident may have caused some of the indicia of impairment relied on by an officer when they could also have been caused by the consumption of alcohol does not mean that the officer must eliminate those indicia from consideration. They must be considered along with all the other indicia in light of the fact that there might be another explanation.

[41] Logically, the same reasoning applies when a court considers whether an officer had reasonable suspicion in the context of an ASD demand.

B. The Position of the Appellant

[42] The appellant contends that Cst. Moar’s subjective reasonable suspicion crystallized when the appellant exited the ambulance after declining medical treatment. The appellant submits that at that point, Cst. Moar had gathered only the following information:

- There was a single motor vehicle accident on a clear, dry day.

- There was a strong minty smell inside the ambulance when he was in the vehicle with the appellant and the paramedics.
- The appellant was emotional and was having difficulty answering some questions.

[43] The appellant suggests these facts, viewed objectively, do not rise to the level of a reasonable suspicion that he had alcohol in his body. The appellant submits that the first two of these pieces of information were objectively neutral and that neutral characteristics that apply broadly to innocent people cannot on their own support a finding of reasonable suspicion.

[44] The appellant submits that accidents can and do occur on clear, dry days for many reasons that are equally as reasonable as the accident occurring because of alcohol. The appellant further submits that the officer had no reason to assume that the minty smell was from a masking agent, particularly given the fact that the officer did not ask any questions about other potential sources for this smell.

[45] The appellant notes that it is insufficient for Cst. Moar to have subjectively believed that he had alcohol in his body. That belief must be objectively reasonable, and it was not, according to the appellant.

C. The Position of the Respondent

[46] The respondent submits that the trial judge was entitled to rely on all of the facts that Cst. Moar had available to him, including any other information reasonably known to the officer but which he did not cite in evidence as ones which he relied on. The respondent further submits that

it is the entire constellation of facts that must be considered collectively in determining if the reasonable suspicion threshold has been met, rather than considering each in isolation.

[47] The respondent submits that the available, discernible facts supporting an objective conclusion that the appellant had alcohol in his body are:

- An overturned truck and trailer in the ditch off the highway on a day when light, road and weather conditions were good.
- That the appellant was upset, emotional, shaken up, unsteady and had difficulty recalling simple information such as his address.
- The strong odour of mint.

[48] The respondent submits that factors such as the above may not be objectively reasonable in isolation. However, in assessing the objective reasonableness of Cst. Moar's subjective suspicion, the court must consider all factors known to the officer cumulatively. When doing so in this case, it is clear that the low standard of reasonable suspicion is met, according to the respondent.

D. Analysis

[49] It is not in issue that the facts found by a trial judge are entitled to deference, absent palpable and overriding error. Whether the facts found by a trier of fact amount to reasonable suspicion is a question of law reviewable on a correctness standard.

[50] I accept the submission of the respondent that reasonable suspicion must be assessed against the totality of the circumstances. As noted by the Supreme Court in *MacKenzie*, individual and seemingly neutral factors may take on value in the analysis when they form part of a

constellation of factors. Reasonable grounds to suspect involves possibilities, not probabilities. It must also be assumed that the reasonable person standing in the shoes of the officer on the scene is endowed with everyday common sense and life experience.

[51] I find that a single motor vehicle accident, on a clear, dry day, with good road conditions, on a relatively open stretch of highway, combined with the appellant's apparent confusion and the presence of a minty smell, commonly associated with a masking agent when detected in the context of a motor vehicle accident investigation, objectively supports the *possibility* that the appellant had alcohol in his body.

[52] I find that the trial judge did not err in finding that Cst. Moar had a reasonable suspicion that the appellant had alcohol in his body. This ground of appeal is dismissed.

3. Did the trial judge err in finding the production order could have issued based on a misapprehension of Cst. Bye's evidence, mistakenly finding that hospital staff told Cst. Bye that the appellant's blood sample would be tested for alcohol?

A. Legal Principles on Production Orders

[53] Section 487.014(2) of the *Code* states as follows:

Before making [the production order] the justice...must be satisfied by information on oath...that there are reasonable grounds to believe that

- (a) An offence has been or will be committed under this or any other Act of Parliament;
and
- (b) The document or data is in the person's possession or control and will afford evidence respecting the commission of the offence.

[54] In *R. v. Manders*, 2007 ONCA 849, Watt J.A. addressed an argument that the ITO in issue failed to disclose a basis upon which the justice of the peace could reasonably conclude that the

conditions precedent to the issuance of the search warrant under s. 487(1)(b) of the *Code* had been met. At para. 11, Watt J.A. set out the test a trial judge is required to apply:

Was there reliable evidence in the sworn information before the justice that might reasonably be believed on the basis of which the justice *could* have granted the warrant. The test was *not* whether, in the reviewing judge’s opinion, the warrants *should* have issued, much less whether the reviewing judge would have issued the warrant himself if asked.

[55] At para. 15 of *Manders*, Watt J.A. observed that “the issuing justice was entitled to draw the inference, at least from the material contained in the information if not from everyday experience, that a routine hospital procedure in the treatment of accident victims whose serious injuries have not yet been determined is to take a blood sample for medical and hospital purposes”.

B. The Position of the Appellant

[56] The appellant submits that the trial judge misapprehended Cst. Bye’s evidence in finding that “hospital staff told [Cst. Bye] that Mr. Shorthouse’s blood sample would be tested for alcohol”. The appellant contends that Cst. Bye’s actual evidence was that hospital staff told him that they were conducting trauma tests that generally includes checking a patient’s blood alcohol level. The appellant suggests that, at its highest, Cst. Bye’s evidence was “speculative” as to whether a blood sample would be taken and, if so, if it would be tested for alcohol.

[57] The appellant submits that, in turn, Cst. Moar, the affiant in the ITO, could not have been provided the information that he swore was true, namely that he “observed as Cst. Bye confirmed with one of the medical staff that blood would be drawn for analysis”.

[58] The appellant submits that Cst. Bye's evidence amplified the record on the grounds for the ITO having issued. The appellant contends that the trial judge should have corrected the ITO to address the fact that Cst. Bye did not confirm that a blood sample would be taken, was not told that blood would be drawn, and that he was not told that, if drawn, the blood would be tested for alcohol. The appellant submits that with this amplification, the production order could not have issued because there was an insufficient basis for the issuing justice to believe that blood would be drawn and that the medical records would provide evidence of an offence.

[59] The appellant submits that the police seizure of the medical records without a valid production order was a s. 8 *Charter* breach. As such, the medical records should be excluded under s. 24(2) of the *Charter*, according to the appellant.

C. The Position of the Respondent

[60] The respondent submits that the appellant's emphasis on the word "*will*" in s. 487.014(2)(b) of the *Code* minimizes the significance of the phrase "*reasonable grounds to believe*" in s. 487.014(2). The respondent contends that para. 44 of the ITO, impugned by the appellant as misleading, must be read in conjunction with para. 43 of the ITO, with which the appellant does not take issue.

[61] The respondent submits that para. 43 of the ITO is relevant and material because it explains in general terms when and why blood samples are taken by medical staff and the likelihood of a toxicology screen being completed. The respondent submits that the information in para. 43 of

the ITO allows for informed inferences to be drawn about whether medical records are likely to contain relevant evidence.

[62] The respondent submits that Cst. Bye's evidence at trial was that he observed blood being drawn from the appellant, consistent with para. 44 of the ITO. Given this evidence, the respondent suggests that the appellant's position must be that it would be unreasonable to believe, or infer, that the blood that Cst. Bye actually observed being drawn would be analyzed. The respondent submits that an issuing justice is allowed to draw reasonable inferences about the scope of medical treatment that a suspect might receive at a hospital. The respondent suggests that it is reasonable to infer that a driver involved in a serious motor vehicle accident and in receipt of medical attention at hospital will routinely have blood drawn and analyzed to inform the medical treatment to be administered. It follows that it is also reasonable to infer that the medical records of such a driver will afford evidence respecting the commission of an offence, according to the respondent.

[63] The respondent submits that the ITO, considered together with the evidence of Cst. Bye, provided grounds for the production order to properly issue.

D. Analysis

[64] I reject this ground of appeal.

[65] The trial judge was tasked with determining whether there was reliable evidence in the ITO that might reasonably be believed on the basis of which the justice could have issued the production order to obtain the appellant's medical records.

[66] The appellant was brought to the hospital after being involved in a serious motor vehicle accident and then becoming “unresponsive” after rejecting medical treatment from the paramedics. Consistent with the observation of Watt J.A. at para. 15 of *Manders*, the issuing justice was entitled to draw the inference, from the information in the ITO and from everyday experience and common sense, that a routine hospital procedure for the treatment of motor vehicle accident victims whose apparently serious injuries have not yet been confirmed, is to take and analyze a blood sample to better inform medical staff as to required treatment.

[67] I accept that the trial judge misapprehended Cst. Bye’s evidence in finding that “hospital staff told [Cst. Bye] that [the appellant’s] blood sample would be tested for alcohol”. However, I find that this misapprehension of the evidence does not amount to an error of law because the trial judge correctly concluded, based on all the evidence, that the production order validly issued. The misapprehension of the evidence on this issue was therefore of no significance to the verdict. Given that I have found no issue with the production order validly issued, it follows that the medical records need not be excluded under s. 24(2) of the *Charter*.

CONCLUSION

[68] The appeal is dismissed. The order of Newton J., dated June 27, 2024, staying the driving prohibition imposed on the appellant by the trial judge on June 19, 2024, is rescinded.

The Hon. Mr. Justice J.S. Fregeau

Released: December 11, 2025

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ONTARIO
SUPERIOR COURT OF JUSTICE

B E T W E E N:

His Majesty the King

Respondent

- and -

Kevin Shorthouse

Appellant

REASONS ON APPEAL

Fregeau J.

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